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File No.: EXP202309534

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A complaint was received by this Agency from A.A.A. (hereinafter, the complainant) dated September 22, 2023, in which she exercised the right of Erasure against CLUB DE AJEDREZ EBANO without her request receiving the legally established response.

The complainant states that she is the mother of a minor who participated as a member of the Ebanó Chess Club. During the year 2023, she became a member of another Chess Club. Nevertheless, the aforementioned club continues to process her and the minor's data, with her photo and identifying information published on the social network Facebook.

On April 5, 2023, she requested the erasure of her data through a legal representative. She received a response on April 13, 2023, requesting proof of representation, so on April 20, 2023, they sent a new burofax with her request, which included the express authorization of representation for the exercise of rights.

The complainant has not received adequate attention to her request.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the Ebanó Chess Club for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: The outcome of the transfer procedure indicated in the previous Fact did not satisfy the complainant's claims. Consequently, on September 3, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency agreed to admit the complaint for processing.

The aforementioned agreement granted the Ebanó Chess Club a hearing period, so that within ten working days it could present any allegations it deemed appropriate, summarizing the following allegations:

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- The personal data published of the complainant pertains to the various competitions whose rules her mother expressly accepted; this constitutes informed, legal, and explicit consent, and is in no way detrimental to the interests of the minor, as a federated player by the Canary Chess Federation.
- The processing does not correspond to the Ebanó Chess Club as it pertains to public events organized by various Town Halls and public entities, which manage through the acceptance of individual rules that belong to each of the different competitions.
- The club does not have the legitimacy to revoke the consent given to the Insular Chess Federation of Tenerife. Nevertheless, from the moment of the first request, the responding party removed the only photo stating that she had been the winner of a competition. This image is the only one published in this regard, and as of today, there is no longer any type of data regarding the complainant.

FOURTH: After examining the document submitted by the Ebanó Chess Club, it is forwarded to the complainant, so that, within ten working days, she may formulate any allegations she considers appropriate, without submitting allegations within the established period.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

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Correspondingly, Article 31 of the GDPR establishes the obligation for controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the claim regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the claim was forwarded to the respondent party for analysis, requiring them to respond to this Agency within one month and to demonstrate that they had provided the claimant with the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on September 3, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the claim presented was admitted for processing. This admission for processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the claimant. After this period, the interested party may consider their claim to be accepted."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of remedying any infringement of the GDPR, including "ordering the controller or processor to attend to the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection,

the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

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Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject, and to express their reasons in case they do not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following grounds applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based according to Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the controller, taking into account available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

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3. Sections 1 and 2 shall not apply when the processing is necessary:

- a) to exercise the right to freedom of expression and information;
- b) for compliance with a legal obligation requiring the processing of data imposed by Union or Member State law applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2,

letters h) and i), and paragraph 3;

d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, to the extent that the right referred to in paragraph 1 could make it impossible or seriously impede the achievement of the objectives of that processing, or

e) for the establishment, exercise, or defense of legal claims.

V

Conclusion

During the processing of this procedure, the chess club Ebano has responded to this Agency, but does not demonstrate having addressed the request made by the complainant, sending the required response to their request.

Thus, it cannot be accepted that the response that corresponds to be given can be manifested in the course of a mere administrative procedure, such as the submission of allegations in the present procedure, initiated precisely for not properly addressing the request in question.

The aforementioned rules do not allow for the request to be overlooked as if it had not been raised, leaving it without the response that the controllers must mandatorily issue, even in the event that there are no data in the files or even in those cases where it does not meet the stipulated requirements, in which case the recipient of such request is also obliged to require the rectification of the observed deficiencies or, if applicable, to deny the request with reasons indicating the causes for which it is not appropriate to consider the right in question.

Therefore, the request made obliges the controller to provide an express response in all cases, using any means that justifies the receipt of the response.

Given that no copy of the necessary communication that must be directed to the complainant informing them about the decision taken regarding the exercise of rights request is attached, it is appropriate to uphold the complaint that originated this procedure.

In view of the cited provisions and other generally applicable ones, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint made by A.A.A. considering that Article 17 of the GDPR has been infringed and to urge CLUB DE AJEDREZ EBANO, to send to the complainant, within ten working days following the notification of this resolution, a certification addressing the requested right or denying it with reasons indicating the causes for which it is not appropriate to address the request, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to CLUB DE AJEDREZ EBANO.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. 1381-090823

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